

Richard Posner's words, a "judge should try to put himself in the shoes of the enacting legislators."³⁹ If that is not possible, "then the judge must decide what attribution of meaning... will yield the most reasonable result... bearing in mind... that it is [the legislators'] conception of reasonableness, to the extent known, rather than the judge's, that should guide decision."⁴⁰

B. *UNITED STATES V. GAYLE*, 342 F.3D 89 (2D CIR. 2003), ENDORSED BY THE SUPREME COURT IN *SMALL V. UNITED STATES*, 544 U.S. 385 (2005)

Textualism's Limits: Whether "any court" in the phrase "convicted in any court" means courts in the United States only

In *United States v. Gayle*, our panel (Joseph McLaughlin, Pierre N. Leval, and I) faced a statutory question for which there was no obvious answer—whether "convicted in any court" pertains to a conviction only in a court in the United States, or to a conviction in any court in the world. Arguments could be marshaled on both sides. Looking only at the text or to a dictionary could not provide a compelling key to interpretation—indeed, it could result in an interpretation that Congress did not mean. Thus, in this close case of statutory construction, we went beyond the text to examine context, including legislative history. Ultimately, the Supreme Court resolved the matter.

The basic facts were these. Rohan Ingram, who was a defendant along with Kirk Gayle and Ann-Marie Richardson, was arrested in a Plattsburgh, New York, hotel upon suspicion that he had illegally entered the United States from Canada. Soon after his arrest, authori-

ties found a large quantity of firearms stored in boxes in his hotel room. Ingram was later charged with conspiracy to export defense articles designated on the United States Munitions List; conspiracy to travel with intent to engage in the illegal acquisition of firearms; and being a felon in possession of a firearm, in violation of 18 U.S.C. §§ 922(g)(1), 924(a)(2). A jury found Ingram guilty on all three counts.

The offense underlying the felon-in-possession count was Ingram's 1996 conviction in Canada for violating § 85(1)(a) of the Canadian Criminal Code for use of a firearm in the commission of an indictable offense. Ingram's lawyers moved to dismiss the felon-in-possession count, arguing that, because his prior felony conviction did not occur in the United States, Ingram was not a felon within the meaning of the statute. The district judge concluded that § 922(g)(1)'s "in any court" language unambiguously includes foreign courts and thus held that Ingram's prior Canadian conviction was a proper predicate offense for § 922(g)(1).⁴¹ The district court's decision was then appealed to the Court of Appeals.

The federal felon-in-possession statute was enacted as part of the Gun Control Act of 1968,⁴² which states in relevant part:

- (g) It shall be unlawful for any person—
 - (1) who has been *convicted in any court* of, a crime punishable by imprisonment for a term exceeding one year; ...
 - to ship or transport in interstate or foreign commerce, or possess in or affecting commerce, any firearm or ammunition; or to receive any firearm or ammunition which has been shipped or transported in interstate or foreign commerce.⁴³

If Ingram's Canadian conviction had been entered by a United States court, it would have qualified under § 922(g)(1) as a predicate

offense—an earlier offense that can be used to enhance a sentence levied for a later conviction—because the statute prohibits possession of a weapon by a person previously convicted of a crime “punishable by imprisonment for a term exceeding one year.” The determinative issue therefore was whether the phrase “convicted in any court” refers solely to convictions by courts in the United States or includes foreign convictions as well.

The Third, Fourth, and Sixth Circuits, along with two district courts, had concluded that “in any court” includes foreign courts.⁴⁴ Conversely, the Tenth Circuit, invoking what is known as the rule of lenity—that a court construing an ambiguous criminal statute should resolve the ambiguity in favor of the defendant—concluded that § 922(g)(1)’s “in any court” language is sufficiently ambiguous that foreign convictions cannot serve as predicate offenses for sentencing enhancements under 18 U.S.C. § 924(e).⁴⁵

Our panel focused first on the plain text, recognizing that if the plain text is unambiguous, our work usually ends there. Most of the courts that determined that “in any court” includes foreign courts have stressed what they viewed as the unambiguously expansive nature of the phrase. Looking at the dictionary, the Seventh Circuit, for example, emphasized the broad, all-encompassing nature of the phrase “in any court”:

Looking to section 922(g)(1), we find nothing that defines or limits the term “court,” only a requirement that a conviction have been “in any court” in the course of prohibiting possession of firearms by a felon. Certainly “any court” includes a military court, the adjective “any” expanding the term “court” to include “one or some indiscriminately of whatever kind”; “one that is selected without restriction or limitation of choice”; or “all.” Webster’s Third New International Dictionary, 1991.⁴⁶

In deciding the case before our panel, we recognized that this interpretation had some force, commenting that there are good reasons why Congress might have wanted to include at least certain types of foreign convictions. "As this legislation," our opinion says, "represents a Congressional response to the danger posed by firearms in the hands of convicted felons, Congress might reasonably have wished to prohibit firearms possession at least by those convicted in foreign countries of crimes of violence."⁴⁷

On the other hand, we said that had Congress envisioned extending the prohibition to persons having foreign convictions, it would in all likelihood have been troubled by whether the prohibition should apply to those convicted by procedures and methods that did not conform to our minimum standards of justice or of crimes the United States would not consider to be felonies, or indeed, crimes at all. For instance, Congress might not have wanted to penalize those convicted of crimes that are anathema to our First Amendment freedoms, such as failure to observe the commands of a mandatory religion or criticizing the government. Congress likewise might have been troubled by applying "in any court" to foreign convictions under laws that punish conduct far more severely than our domestic law does; in Singapore, for example, an individual can be imprisoned for up to three years for acts of vandalism, making the crime a felony when it would not be so classified in the United States. The complete silence of the statute on such questions further contributed to our sense that its meaning was not clear and that it might be appropriate to look beyond its words alone for guidance as to its meaning.

Hence, our examination of what constitutes a predicate offense under § 922(g)(1) did not end with the words "in any court." Drawing on precedent, we noted that the text's meaning could best be understood by looking to the statutory scheme as a whole and placing the

particular provision within the context of that statute. In § 921, the Gun Control Act's general statutory definition section, Congress excluded from the definition of the sort of crimes that constitute predicate offenses for a § 922(g)(1) conviction "any *Federal* or *State* offenses pertaining to antitrust violations, unfair trade practices, restraints of trade, or other similar offenses relating to the regulation of business practices," regardless of whether such a crime was "punishable by imprisonment for a term exceeding one year."⁴⁸ In finding § 922(g)(1) ambiguous, the Tenth Circuit relied heavily on this statutory definition, which it believed would cause a "peculiar result" if "in any court" included foreign courts. As the Tenth Circuit noted, if "in any court" were to include foreign courts, "we would be left with the anomalous situation that fewer domestic crimes would be covered than would be foreign crimes."⁴⁹ Like the Tenth Circuit, we did not understand the logic whereby a person convicted of an antitrust violation in a foreign country would not be allowed to possess a firearm, yet a person convicted of the same antitrust violation in the United States would be allowed to possess one. At the very least, we thought that § 921(a)(20) injected doubt as to whether Congress intended foreign convictions to serve as predicate offenses.⁵⁰

Even without reference to the problem resulting from the inclusion of foreign business offenses as predicate offenses, we thought the phrase "in any court" was ambiguous. For instance, it is not unreasonable to understand statutory references to officers, officials, and acts of government as meaning those of the particular government that enacted the law. Just as a state statute authorizing "a police officer" to make an arrest probably means a police officer of that state and does not include police officers from foreign nations, so it is reasonable to read § 922(g)(1)'s reference to convictions as referring to convictions by courts in the United States. On the other hand, as noted above, there are legitimate reasons why, in the case of

violent crimes for example, Congress might have wished to include foreign convictions as predicate offenses under § 922(g)(1).

To resolve this textual ambiguity, we determined that we could consult legislative history and other tools of statutory construction to discern Congress's meaning. Resort to authoritative legislative history may be justified, our panel wrote, where there is an open question as to the meaning of a word or phrase in a statute, or where a statute is silent on an issue of fundamental importance to its correct application. As a general matter, said our opinion, we may consider reliable legislative history where, as in this case, the statute is susceptible to divergent understandings and, equally important, where authoritative legislative history helps us discern what Congress actually meant.⁵¹

We looked first to the Senate Judiciary Committee Report on the Gun Control Act, as committee reports are among "the most authoritative and reliable materials of legislative history."⁵² We determined that the Senate Report strongly suggested that Congress did not intend foreign convictions to serve as predicate offenses under the felon-in-possession statute. The Senate Report explained the meaning of the term "felony" as follows: "The definition of the term 'felony,' as added by the committee, is a new provision. It means a Federal crime punishable by a term of imprisonment exceeding 1 year and in the case of State law, an offense determined by the laws of the State to be a felony."⁵³ The Senate Report thus, in our view, unmistakably contemplated felonies, for purposes of the Gun Control Act, to include only convictions in courts in the United States.

Further evidence of Congress's intent to exclude foreign convictions came from the Conference Report, and we noted that next to the statute itself, the most pervasive evidence of congressional intent comes from a conference report "[b]ecause," we wrote, "a conference report represents the final statement of terms agreed to by

both houses.”⁵⁴ The Conference Report adopted the House version of the bill, which contained the statute’s current language, “crime punishable by imprisonment for a term exceeding one year.”⁵⁵ According to our panel, however, the Conference Report voiced no disagreement with the Senate Report’s explicit limitation of felonies to include only convictions attained in domestic courts. Rather, the Conference Report merely chose the phrase “crime punishable by imprisonment for a term exceeding 1 year” over the word “felony.”⁵⁶ Moreover, nowhere did the Conference Report make any mention of foreign convictions serving as predicate offenses.

In sum, two reliable portions of the Gun Control Act’s legislative history—the Senate Report and the Conference Report—led us to conclude that Congress did not intend foreign convictions to serve as a predicate offense for § 922(g)(1). Accordingly, we interpreted § 922(g)(1)’s ambiguous “convicted in any court” language as including only convictions attained in domestic courts and not extending to Ingram’s Canadian conviction.

In reaching our decision, we noted that Congress has the power to enact gun control legislation that criminalizes firearm possession by individuals with foreign felony convictions: “If Congress were to do so, however, it would need to speak more clearly than it has in § 922(g)(1). Today, we only choose not to write into a statute a meaning that seems contrary to what Congress intended.”⁵⁷

The Supreme Court Approaches the Statutory Question:
Small v. United States, 544 U.S. 385 (2005)

In concluding that “convicted in any court” did not include foreign convictions, our Second Circuit panel agreed with the Tenth Circuit and disagreed with the Third, Fourth, and Sixth Circuits.⁵⁸ The Supreme Court granted certiorari to resolve the circuit split. The Court held that “convicted in any court” encompasses only domestic,

not foreign, convictions. Justice Breyer delivered the opinion of the Court, in which Justices Stevens, O'Connor, Souter, and Ginsburg joined. Justice Thomas filed a dissenting opinion in which Justices Scalia and Kennedy joined. Chief Justice William H. Rehnquist took no part in the decision of the case.

In the case that the Court chose to resolve the split, Small was convicted in a Japanese court of trying to smuggle firearms and ammunition into that country. He served five years in prison and then returned to the United States, where he bought a gun. Federal authorities subsequently charged Small under 18 U.S.C. § 922(g)(1), and Small pleaded guilty while reserving the right to challenge his conviction on the ground that his earlier conviction, being foreign, fell outside § 922(g)(1)'s scope. The federal district court and the Third Circuit rejected this argument.

Justice Breyer began by squarely presenting the problem of determining whether "convicted in *any* court" includes a conviction entered in a foreign court. He wrote:

The word "any" considered alone cannot answer this question. In ordinary life, a speaker who says, "I'll see any film," may or may not mean to include films shown in another city. In law, a legislature that uses the statutory phrase "'any person'" may or may not mean to include "'persons'" outside "the jurisdiction of the state." Thus, even though the word "any" demands a broad interpretation, we must look beyond that word itself.⁵⁹

In considering the scope of "convicted in any court," the Court said that it is appropriate to assume that Congress had domestic concerns in mind, similar to the presumption that Congress ordinarily intends its statutes to have domestic, not extraterritorial, application.⁶⁰ In this context, the phrase "convicted in any court" describes one necessary portion of the "gun possession" activity that is prohibited as a matter

of domestic law. Moreover, opined Justice Breyer, foreign convictions may include convictions for conduct that domestic laws would permit (for example, for engaging in economic conduct that our society might encourage), convictions from a legal system that is inconsistent with an American understanding of fairness, and convictions for conduct that domestic law punishes far less severely. Thus, the key statutory phrase "convicted in any court of, a crime punishable by imprisonment for a term exceeding one year" somewhat less reliably identifies dangerous individuals for purposes of U.S. law where foreign convictions, rather than domestic convictions, are at issue. In addition, the majority determined, it is difficult to read the statute as asking judges or prosecutors to refine its definitional distinctions where foreign convictions are at issue. The Court said that "[t]o somehow weed out inappropriate foreign convictions that meet the statutory definition is not consistent with the statute's language; it is not easy for those not versed in foreign laws to accomplish; and it would leave those previously convicted in a foreign court (say, of economic crimes) uncertain about their legal obligations."⁶¹ These considerations, Justice Breyer stated, provided a convincing basis for applying here the ordinary assumption that domestically oriented statutes apply only domestically. Thus, the Court assumed a congressional intent that the phrase "convicted in any court" applies domestically, not extraterritorially, unless the statutory language, context, history, or purpose were to the contrary.

The Court also stated that there was no convincing indication to the contrary here because the statute's language suggests no intent to reach beyond domestic convictions. If read to include foreign convictions, the statute's language creates anomalies. As had our panel, the Supreme Court noted that in creating an exception allowing gun possession despite a conviction for an antitrust or business regulatory crime, § 921(a)(20)(A) speaks of "Federal or State" anti-

trust or regulatory offenses. In the Court's view, if the phrase "convicted in any court" generally refers only to domestic convictions, this language causes no problem. But if the phrase includes foreign convictions, the words "Federal or State" would prevent the exception from applying where a *foreign* antitrust or regulatory conviction is at issue. Such illustrative examples suggest, Justice Breyer wrote, that Congress did not consider whether the generic phrase "convicted in any court" applies to foreign convictions.⁶²

Moreover, the Court determined that the statute's legislative history indicated no intent to reach beyond domestic convictions. Although the statutory purpose of keeping guns from those likely to become a threat to society offers some support for reading § 922(g)(1) to include foreign convictions, the likelihood that Congress, at best, paid no attention to the matter is reinforced by the empirical fact that, according to the government, between 1968 and the time of the Supreme Court's consideration of this case, there had been fewer than a dozen instances in which such a foreign conviction had served as a predicate for a felon-in-possession prosecution.

Justice Thomas Dissents, Joined by Justices Scalia and Kennedy

In dissent, Justice Thomas wrote:

The broad phrase "any court" unambiguously includes all judicial bodies with jurisdiction to impose the requisite conviction—a conviction for a crime punishable by imprisonment for a term of more than a year. Indisputably, Small was convicted in a Japanese court of crimes punishable by a prison term exceeding one year. The clear terms of the statute prohibit him from possessing a gun in the United States.⁶³

He stated that, in contrast to other parts of the firearms-control law that expressly mention only state or federal law, "any court" is not qualified by jurisdiction. He rejected the Court's reasoning:

Faced with the inescapably broad text, the Court narrows the statute by assuming that the text applies only to domestic convictions; criticizing the accuracy of foreign convictions as a proxy for dangerousness; finding that the broad, natural reading of the statute "creates anomalies"; and suggesting that Congress did not consider whether foreign convictions counted. None of these arguments is persuasive.⁶⁴

Justice Thomas argued that the majority had inappropriately invented a canon of statutory interpretation limiting the reach of domestically oriented statutes. He wrote that it "was eminently reasonable" for Congress to use as proxy for dangerousness convictions punishable by imprisonment for more than a year, foreign no less than domestic. He also stated that the "rarity of such prosecutions... only refutes the Court's simultaneous claim that a parade of horrors will result if foreign convictions count."⁶⁵

Justice Thomas also disagreed that the legislative history is silent, and interpreted the elimination in conference of the limiting references to "Federal" and "State" to mean that "not *only* federal and state convictions were meant to be covered."⁶⁶ In a bow to Justice Scalia, who joined the dissent but would object to reliance on legislative history, Justice Thomas stated:

Some, of course, do not believe that any statement or text that has not been approved by both Houses of Congress and the President (if he signed the bill) is an appropriate source of statutory interpretation. But for those who do, this committee change

ought to be strong confirmation of the fact that “any” means not “any Federal or State,” but simply “any.”⁶⁷

A Brief Comment

The question here was difficult; reflexively relying on the text could not supply the answer, nor could a dictionary. As reasonable arguments could be made on both sides, I had prepared a draft coming out the other way to sharpen my thinking. Our panel’s opinion implicitly acknowledged the difficulty of this case by explicitly observing that Congress may seek to enact gun control legislation that criminalizes firearm possession by individuals with foreign felony convictions, but that if Congress were to do so, it would have to be clearer than it was in § 922(g)(1). Interpreting Congress’s work as best we could, we were mindful that it was not our charge to write into a statute a meaning that seemed contrary to what Congress intended.

C. MURPHY V. ARLINGTON CENTRAL SCHOOL DISTRICT BOARD OF EDUCATION, 402 F.3D 332 (2D CIR. 2004), REVERSED BY THE SUPREME COURT, 548 U.S. 291 (2006)

The Value of Legislative History: Whether “reasonable attorneys’ fees as part of the costs” includes expert consultant fees

Murphy v. Arlington Central School District Board of Education presented a matter of first impression in our circuit. My panel (Jon O. Newman, Rosemary Pooler, and I) had to interpret a provision of the Individuals with Disabilities Education Act (“IDEA”). We sought to understand the statute’s purpose, drawing upon legislative

history, Supreme Court precedent, the Supreme Court's citations to legislative history, and congressional activity. When the Supreme Court reversed our decision, it took a totally different tack, relying on arguments that lawyers for the school district raised for the first time when the case reached the Supreme Court. In contrast to the Supreme Court majority, for my panel and for the dissenting Justices, led by Justice Breyer, legislative history and understanding the flow of congressional action were vital in the interpretive process.

At issue in *Murphy* was whether parents who prevailed in disputes with their school systems over the educational placements of their disabled children were entitled to reimbursement for costs associated with hiring expert witnesses and consultants who aided them in the litigation.

The school board conceded that the parents were the prevailing party and that they were entitled to attorneys' fees under a provision of the IDEA authorizing a court to award "reasonable attorneys' fees as part of the costs" to parents who prevail in their complaints against their school boards.⁶⁸ However, school officials argued in the district court that the fee-shifting provisions were applicable to recovery of attorneys' fees only. The district court ruled against the school district's position and determined that consultant fees could be considered costs within the meaning of the Act.

The case then wended its way to the Court of Appeals, where the parents, Pearl and Theodore Murphy, represented themselves pro se, as they had in the district court, and Public Citizen, a national public interest law firm, participated as a friend of the court (*amicus curiae*).

In deciding the case, we stated: "While we appreciate—and in practice honor, wherever possible—the virtues of relying solely on statutory text, at times text without context can lead to results that Congress did not intend."⁶⁹ In our view, although "costs" is a term of

art that generally does not include expert fees in civil rights fee-shifting statutes, we believed that Supreme Court precedent, the legislative history of the IDEA upon which the Supreme Court relied in its 1991 decision in *West Virginia University Hospitals, Inc. v. Casey*,⁷⁰ and congressional action in the aftermath of the Supreme Court's ruling in that case required us to find that Congress intended to and did authorize the reimbursement of expert fees in IDEA actions.

By way of background, in a 1987 case, the Supreme Court, addressing fee-shifting for expert witnesses under Federal of Civil Procedure 54(d) in an antitrust case, held that "when a prevailing party seeks reimbursement for fees paid to its own expert witnesses, a federal court is bound by the limit of [28 U.S.C.] § 1821(b), absent contract or explicit statutory authority to the contrary."⁷¹ Under § 1821(b), witnesses' fees are limited to \$40 per day for each day's attendance. Four years later, in *Casey*, the Supreme Court employed the same analysis in construing the fee-shifting provisions of civil rights statutes. Specifically, the Court held that while a prevailing party could recover "a reasonable attorney's fee as part of the costs" in civil rights actions, a prevailing party could *not* recover "expert fees" under 42 U.S.C. § 1988, because there was no "explicit statutory authority" indicating that Congress intended for that sort of fee-shifting.⁷²

Notably, in reaching this result, the Court expressly compared and contrasted § 1988 to the IDEA. The Court observed in dicta (language not part of the holding, that is, the legal principle derived from the decision) that a conference committee report on the IDEA stated that "[t]he conferees intend that the term 'attorneys' fees as part of the costs' include reasonable expenses and fees of expert witnesses and the reasonable costs of any test or evaluation which is found to be necessary for the preparation of the... case."⁷³ Justice

Scalia, author of the majority opinion in *Casey*, acknowledged that “[t]he statement is an apparent effort to *depart* from ordinary meaning and to define a term of art.”⁷⁴

Our panel believed that this dicta, with its reference to the IDEA conference committee report, favored a construction of the IDEA providing for the reimbursement of costs such as those the Murphys incurred for an expert evaluation. To us, the Supreme Court itself had strongly intimated that the IDEA is different from ordinary fee-shifting statutes because the legislative history of the IDEA unambiguously indicates that Congress intended to *allow* recovery of the costs of experts, rather than *prevent* it.

In *Casey*, we thought, the Supreme Court signaled to Congress that if it wished for expert witness fees to be awarded as costs under § 1988, it would have to amend the then-existing § 1988, but that no such action was necessary with regard to IDEA expert witness fees because the conference committee report indicated that such expert witness fees were authorized as part of costs under the law. We therefore found it instructive that shortly after the Court’s decision in *Casey*, Congress amended § 1988 in order to make expert fees compensable in civil rights actions, but Congress took no similar action with respect to the IDEA.⁷⁵ We believed it reasonable to infer that Congress, on the basis of the Supreme Court’s *Casey* decision, saw no need to amend the IDEA because the Court had recognized that, in enacting the IDEA, Congress had sufficiently indicated in the conference committee report that prevailing parties could recover expert fees under the Act. And we noted that it is not as if Congress merely failed to amend the IDEA, having done so at the time of our opinion a number of times since *Casey*, most recently in December 2004.⁷⁶

To those who would question our resort to legislative history, we observed that it was Justice Scalia, a noted skeptic of the use of legislative history, who authored *Casey*’s dicta about the apparent effort

by Congress to depart from the ordinary meaning of the term “costs” in the IDEA. We also recognized that, while some legislative history is less reliable than others, a conference committee report is generally among the most authoritative. We considered the conference committee report here, given the Supreme Court’s acceptance of it, the general reliability of the conference committee report itself, and the settled legislative expectations in the wake of the *Casey* decision.

We were also of the view that our holding was consistent with the purposes of the IDEA, which are to “ensure that all children with disabilities have available to them a free appropriate public education that emphasizes special education and related services designed to meet their unique needs and prepare them for further education, employment, and independent living” and “to ensure that the rights of children with disabilities and parents of such children are protected.”⁷⁷ Expert testimony is often critical in IDEA cases, which entail fact-intensive inquiries about the child’s disability and the effectiveness of the measures that the school board has offered to secure a free appropriate public education. The IDEA’s procedural safeguards ensure that children and parents can realize whatever benefits are due. Thus, for example, we noted that parties to IDEA proceedings have “the right to be accompanied and advised by counsel and by individuals with special knowledge or training with respect to the problems of children with disabilities,”⁷⁸ and “[i]n any action or proceeding brought under this section, the court, in its discretion, may award reasonable attorneys’ fees as part of the costs[] to a prevailing party who is the parent of a child with a disability.”⁷⁹ We thought it would be inconsistent with the IDEA’s conferral of the right to be accompanied by an “individual[] with special knowledge” to find that the IDEA’s fee-shifting provision barred compensation for such an individual’s service. Moreover, a prevailing plaintiff in an IDEA case, in contrast to plaintiffs in cases

brought under other civil rights statutes, can collect no money damages; rather, their relief rests solely in the appropriate education of their child. Absent a fee-shifting provision that allows for the recovery of appropriate expert fees, most parents of children with disabilities would have difficulty pursuing their cases. Prohibiting expert witness fees for prevailing parents would thus frustrate the purposes of the IDEA, resulting in fewer children receiving the education they deserve.⁸⁰

The Supreme Court Decides: Arlington Central School District Board of Education v. Murphy, 548 U.S. 291 (2006)

We thus joined the Third Circuit in its view that the IDEA provided for expert witness fees for prevailing parents.⁸¹ In contrast, the Seventh and Eighth Circuits read the IDEA to limit recovery to attorneys' fees, because other costs were not defined and the statute did not explicitly award fees for expert witnesses or consultants.⁸² To resolve the circuit split, the Supreme Court heard the appeal in *Murphy*. Writing for the Supreme Court in its 6-to-3 decision (Chief Justice Roberts and Justices Scalia, Kennedy, Ginsburg, Thomas, and Alito in the majority; Justices Stevens, Souter, and Breyer in the minority), Justice Alito reversed and ruled in favor of the school board.

Before the Supreme Court, the school board argued for the first time in the litigation that the Spending Clause of the Constitution essentially dictated an outcome in its favor. The Court agreed, determining that because the IDEA was enacted under the Spending Clause, school boards were responsible only for those fees about which the Act provided clear notice. Because the text of the IDEA did not refer to fees for expert witnesses or consultants, the Court concluded that states and school districts lacked the requisite notice

that they could be responsible for such costs. Moreover, the Court asserted that although the IDEA addresses how courts should calculate attorneys' fees to ensure their reasonableness, Congress provided no similar language for expert witnesses and consultants.

In its analysis, the Court rejected the parents' and our panel's view that the language in the conference committee report accompanying the bill—"The conferees intend that the term 'attorneys' fees as part of the costs' include reasonable expenses and fees of expert witnesses"—meant that Congress intended that fees for expert witnesses should be recoverable to the same extent as attorneys' fees. The Court concluded that this mention of fees for expert witnesses was insufficient to counter what it considered to be "the unambiguous text" of the IDEA, which led it to reject the Murphys' claim for reimbursement:

Whatever weight this legislative history would merit in another context, it is not sufficient here. Putting the legislative history aside, we see virtually no support for respondents' position. Under these circumstances, where everything other than the legislative history overwhelmingly suggests that expert fees may not be recovered, the legislative history is simply not enough. In a Spending Clause case, the key is not what a majority of the Members of both Houses intend but what the States are clearly told regarding the conditions that go along with the acceptance of those funds.⁸³

The Court also differed with our panel's interpretation of Justice Scalia's dicta in *Casey* about the apparent effort by Congress to depart from the ordinary meaning of the term "costs" in the IDEA. Justice Alito wrote:

The footnote did not state that the Conference Committee Report set out the correct interpretation of § 1415(i)(3)(B),

much less that the Report was sufficient, despite the language of the statute, to provide the clear notice required under the Spending Clause. The thrust of the footnote was simply that the term “attorneys’ fees,” standing alone, is generally not understood as encompassing expert fees.⁸⁴

Justice Ginsburg agreed with the Court’s holding but parted company with its reasoning as to the Spending Clause. She wrote that the “clear notice” requirement was not applicable in this case. Rather, she argued that the case could be resolved by reading the IDEA’s text, which lacked any reference to fees for expert witnesses and consultants.⁸⁵

Justice Breyer Dissents, Joined by Justices Stevens and Souter

In dissent, Justice Breyer began:

Unlike the Court, I believe that the word “costs” includes, and authorizes payment of, the costs of experts. The word “costs” does not define its own scope. Neither does the phrase “attorneys’ fees as part of costs.” But Members of Congress did make clear their intent by, among other things, approving a Conference Report that specified that “the term ‘attorneys’ fees as part of the costs’ include[s] reasonable expenses and fees of expert witnesses and the reasonable costs of any test or evaluation which is found to be necessary for the preparation of the parent or guardian’s case in the action or proceeding.” No Senator or Representative voiced *any* opposition to this statement in the discussion preceding the vote on the Conference Report—the last vote on the bill before it was sent to the President. I can find no good reason for this Court to interpret the language of this

statute as meaning the precise opposite of what Congress told us it intended.⁸⁶

Justice Breyer undertook an extensive analysis of the provision's legislative history, with particular reference to the Conference Report, to support his view that Congress intended that expert fees be included as part of costs. He noted that when Congress amended the IDEA to add the fee-shifting provision in question, it directed the GAO to undertake a study that included tabulation of statistics about the costs of experts, which, he said, made it clear that Congress intended "costs" to mean more than attorneys' fees. Finally, Justice Breyer said the IDEA's purpose is to enable parents to advocate for their children, adding:

[O]ur ultimate judicial goal is to interpret language in light of the statute's purpose. Only by seeking that purpose can we avoid the substitution of judicial for legislative will. Only by reading language in its light can we maintain the democratic link between voters, legislators, statutes, and ultimate implementation, upon which the legitimacy of our constitutional system rests. . . . [W]e must retain all traditional interpretive tools—text, structure, history, and purpose. And, because faithful interpretation is art as well as science, we cannot, through rule or canon, rule out the use of any of these tools, automatically and in advance.⁸⁷

In short, he said, "[b]y disregarding a clear statement in a legislative Report adopted without opposition in both Houses of Congress, the majority has reached a result no Member of Congress expected or overtly desired. It has adopted an interpretation that undercuts, rather than furthers, the statute's purpose, a 'free' and 'appropriate' public education for 'all' children with disabilities. And it has adopted an approach that, I fear, divorces law from life."⁸⁸

In a short dissent, Justice Souter underscored that a congressionally mandated study led him to agree with Justice Breyer that it was appropriate to look to legislative history in finding that Congress intended to include expert fees as recoverable costs.⁸⁹

A Brief Comment

In *Arlington Central School District*, the disagreement between the Supreme Court majority and minority was about the importance to be assigned to the Spending Clause and how best to understand congressional purpose. The minority's examination of legislative history, much like my panel's, reflects a view that authoritative legislative materials are not only useful, but also what legislators expect interpreters to consider in seeking to fully understand legislative meaning. Here, the legislative history seemed to be a decisive indicator of what Congress meant to do. And also relevant, my panel thought, but also to little effect, was how Congress responded in the wake of the Supreme Court's *Casey* decision. Moreover, *Arlington Central School District* illustrates that the Supreme Court can decide a case based on arguments raised even late in the process; the prevailing party in the lower courts devoted scant attention to the Spending Clause arguments, in fact, arguing in its brief to the Supreme Court that by not raising those arguments, the School Board was precluded from doing so before the Supreme Court.

D. CODA

These cases show how other judges and I seek to resolve often difficult questions of statutory interpretation. As I noted at the outset of this chapter, we are aided by a wide range of instruments, such as the

text, statutory structure, history, word usage in other relevant statutes, common law usages, agency interpretations, dictionary definitions, technical and scientific usages, lay usages, canons, common practices, and purpose. A reader who will be satisfied only by a grand theory of statutory interpretation is no doubt disappointed. I am inclined to the view that any grand theory will fail to capture the nuances of the legislative process which undergirds our inquiry. As Professor Kent Greenawalt has written, "multiple considerations are relevant for statutory interpretation and...no neat categorization of these can consistently produce simple answers when the force of statutory language is not evident."⁹⁰ I hope that the cases provided you a sense of the very concrete challenges before me, challenges that do not lend themselves to a one-size-fits-all solution. Statutes differ, contexts differ, and how tools are used may vary from case to case. But the essential framework that guides me remains the same: at all times, I seek to interpret the statute in ways that realize Congress's meanings and purposes to the best I can discern them. It is for me a practical inquiry, grounded in a process that is respectful of the legislature and its workways. And, in that examination, sticking only to the text may stand in the way of correctly construing legislative meaning. It is for you to judge whether I got it right.

Promoting Understanding

My experience as a judge only reinforces my view that at some basic level, each institution—that is, the courts and the legislature—could benefit from a deeper appreciation of how the other operates. Congress, which enacts the laws, should find it useful to learn more about how the judiciary interprets its laws; and the judiciary, for its part, could learn more about the legislative process to better equip judges to interpret those laws. The lineage of jurists with legislative experience is a distinguished one, including England's Lord Mansfield in the eighteenth century.¹ Today—in contrast to a generation ago—only two federal judges have served as members of Congress.² And in Congress, there is only one former federal judge and one state supreme court justice, though some federal legislators clerked for judges.³

To aid the judiciary in understanding Congress, some entity such as the Congressional Research Service of the Library of Congress, perhaps in conjunction with the legislative counsels' offices in both legislative chambers, could sponsor periodic seminars for judges and law clerks about the legislative process, perhaps developing a manual and videos about the lawmaking process. A start on this task is a pamphlet for judges on legislative drafting conventions by M. Douglass Bellis, longtime member of the House legislative counsel's office.⁴ Similarly, to help Congress understand how the courts work, the Federal Judicial Center and the Administrative

Office of the U.S. Courts could develop programs for legislators and their staffs about how the judiciary functions. Optimally, such activities could be incorporated into orientation programs for new judges, legislators, and staffs.

While mutual appreciation and deeper knowledge are always desirable, it would, of course, be fanciful to think that Congress would—or even could—do away with ambiguity in its laws. As I noted earlier, ambiguity may be a deliberate strategy to secure the necessary votes, or a product of the policy and political challenges surrounding the problem at hand.⁵ Nevertheless, there may be ways for Congress to help clarify legislative meaning, through both the drafting and the statutory revision processes, as well as the development of more reliable legislative histories that could aid judges as they undertake their work. And in so doing, Congress can make it more likely that the “[d]ignity of [l]egislation,”⁶ in Jeremy Waldron’s felicitous phrase, will be preserved and respected.

A. DRAFTING AND STATUTORY REVISION

Ideally, legislators and their staffs should make greater use of the skilled legislative drafters in their offices of legislative counsel. If all legislative drafting were funneled through those offices, which apply accepted linguistic conventions and standards, then courts would have an easier time interpreting statutes. But that is not the reality of the legislative process. For those who do not avail themselves of the legislative drafting services, a checklist of common issues might be prepared—for example, dealing with such matters as attorneys’ fees, private rights of action, preemption, statutes of limitations, effective dates, and exhaustion of administrative remedies. There have already been several proposals for such a checklist.⁷ When not

addressed in the law, such issues are resolved in court. While such a checklist would not prevent strategic, deliberate omissions, it could be useful in avoiding drafting oversights, clarifying legislative intent, and reducing burdens on the courts.

Similarly, the offices of legislative counsel could prepare a drafting guidebook for members and staffs. Law schools or some other neutral body could organize seminars with legislative counsels and judges to discuss problems of drafting and interpretation. Law school courses and continuing legal education programs on drafting would also be helpful, not only for those who work in Congress, but also for those in interest groups and organizations urging legislators and staffs to introduce bills for which they have crafted language.

Finally, to provide more precision, Congress might resort more to default rules, which would become effective when the legislative branch has not dealt with the particular issue in question in a specific substantive statute. For example, a statute may not explicitly provide for the time period in which a lawsuit must commence after the alleged violation of the law occurs. The failure to do so could lead to litigation, calling on courts to determine that time period. But a default rule enacted by Congress, as to civil statutes, solves the problem in circumstances where the specific law does not address the issue: "Except as otherwise provided by law, a civil action arising under an Act of Congress enacted after the date of the enactment of this section may not be commenced later than 4 years after the cause of action accrues."⁸ Hence, the default position is triggered if a particular statute has not addressed the time limitations on the commencement of civil actions arising under it.

The flip side of drafting before bills are enacted is the statutory revision process. Interbranch understanding of statutes can also be enhanced through the process of statutory revision. Supreme Court

justices will from time to time identify an opinion meriting further congressional attention, as Justice Ginsburg did, to prominent effect, in the *Lilly Ledbetter* case.⁹ Congress is generally aware of Supreme Court decisions, as evidenced by legislative reversals of decisions of our highest tribunal.¹⁰ But the first branch tends to give little attention to the large number of statutory opinions of the lower courts. This lack of attention, while understandable given Congress's workload, is curious in view of the role that those courts play in construing statutes. Since the Supreme Court hears about eighty cases a year, the decisions made in the federal appellate courts are especially consequential.

"Most of the work currently done by federal courts, including the Supreme Court," commented Justice Ginsburg, "involves not grand constitutional principle, but the interpretation and application of laws passed by Congress, laws that are sometimes ambiguous or obscure."¹¹ She further observed:

When Congress is not clear, courts often invite, and are glad to receive, legislative correction. The law Congress declares, as the Chief Justice recently stated, is by and large the law federal courts apply. When Congress has been Delphic or dense, or simply imprecise, legislative clarification can ward off further confusion.¹²

Nearly five decades ago, Judge Henry J. Friendly of the Second Circuit, writing about the importance of statutory law, lamented "the problems posed by defective draftsmanship," especially in uncontroversial legislation.¹³ He wrote about "the occasional statute in which the legislature has succeeded in literally saying something it probably did not mean,"¹⁴ observed that "even the best draftsman is likely to have experienced the occasional shock of finding that what he wrote was not at all what he meant,"¹⁵ and

commented on the legislative time pressures that result in "neglect of the undramatic type of legislative activity."¹⁶ Three decades later, another circuit judge, James L. Buckley of the D.C. Circuit and also a former senator, remembered that in Congress, "[w]ith time often the enemy, mistakes—problems of grammar, syntax, and punctuation—are made in the drafting of statutes and affect the meaning of legislation."¹⁷

Over the years, several proposals have been made to facilitate statutory revision.¹⁸ Then-Circuit Judge Ginsburg and her coauthor Peter W. Huber recommended that a "second look at laws" committee be created, and that the Office of Law Revision Counsel, which has had a ministerial role of correcting citations, assist in "statutory housekeeping."¹⁹ Judge Frank M. Coffin urged that a unit within the judiciary collate and sift judicial opinions with suggestions for the legislative branch and send them to Congress.²⁰ Then-Chief Judge James L. Oakes of the U.S. Court of Appeals for the Second Circuit, my court, seconded the proposal.²¹ Judge Wilfred Feinberg of the same court called for the Judicial Conference to "designate a handful of law professors working on a part-time basis as a committee to call attention to... conflicts [among the circuits]."²² Justice Stevens suggested that Congress create a legislative mechanism to resolve intercircuit conflicts.²³

These thoughts have a distinguished lineage. In 1921, Benjamin N. Cardozo, then an associate judge on the New York Court of Appeals, drawing upon Roscoe Pound and Jeremy Bentham, recommended the creation of ministries of justice to facilitate law revision.²⁴ In the early 1960s, Judge Friendly stated that "[i]t would seem elementary that an agency whose task is to [help] formulate legislation... should be attached to the legislature."²⁵

One approach that promotes improved drafting and that may also lead to statutory revision is a practical effort, in which I participated,

designed over twenty years ago by the Governance Institute.²⁶ Through this project of “statutory housekeeping”²⁷—in Justice Ginsburg’s apt phrase—courts of appeals send opinions that identify possible technical problems in statutes to Congress for its information and for whatever action it wishes to take.²⁸ The effort informs the drafters as well as legislators and staff more generally of the technical problems that judges identify in opinions applying statutes.

The project began in 1988 when some judges of the U.S. Court of Appeals for the D.C. Circuit invited Judge Coffin, then chair of the Judicial Conference’s Judicial Branch Committee, and me²⁹ to analyze what happened in Congress after the courts issued statutory decisions that referred to problems in grammar, apparent “glitches,” ambiguous terminology, and omissions of key details, such as effective dates.³⁰ With the aid of the D.C. Circuit judges, after identifying a small body of relevant opinions, we assessed legislative awareness of these opinions. We discovered that committee staff did not know about judicial opinions concerning technical aspects of the statutes under the committee’s jurisdiction, although they were cognizant of decisions on broad, policy-oriented issues of statutory interpretation or decisions that a losing party with influence had asked Congress to reverse.³¹

Working with legislators and their staffs, we—with the counsel of Governance Institute Distinguished Fellow and former House member Robert W. Kastenmeier—conceived of a pilot project, whereby the D.C. Circuit Court of Appeals would transmit its relevant statutory opinions to the House of Representatives.³² In 1993, Chief Justice Rehnquist backed the pilot project,³³ and two years later the Judicial Conference recommended that all courts of appeals participate.³⁴

In the early 2000s, more than half the courts of appeals had transmitted opinions to Congress. Participation declined, however, because the project had not been fully institutionalized within the

judiciary. In May 2006, the legislative counsels of Congress asked the Governance Institute, led by Russell R. Wheeler, to revitalize the project.³⁵ The result was a July 2007 memorandum from the Director of the Administrative Office of the U.S. Courts, James Duff, and from the leadership of the U.S. Judicial Conference Committee on the Judicial Branch, to all circuit judges, along with letters from the bipartisan leadership of both Judiciary Committees, asking all courts of appeals to participate.³⁶ Opinions that are appropriate for transmission include those where the court has identified possible grammatical problems that affect meaning and where the statute requires courts to fill in a gap (for example, whether Congress intended the statute to be retroactive). They also include statutes that may present ambiguities in language or ambiguities arising from having to interpret related statutes, or statutes with a perceived problem, about which a judicial opinion suggests the possibility of legislative action.

The questions raised in the opinions³⁷ have been far-ranging. For instance, one opinion confronted the question of whether the Immigration and Nationality Act's requirement that an individual "lawfully resided continuously" for seven years, necessary for a waiver of inadmissibility, begins when an alien applies for adjustment of status or when that status is actually granted.³⁸ Another case examined whether, pursuant to Chapter 13 of the U.S. Bankruptcy Code, debtors who own rather than lease a vehicle may deduct ownership costs from bankruptcy repayment plans.³⁹ In still another example, the Seventh Circuit considered whether the Sex Offender Registration and Notification Act's registration requirement applies to offenders whose travel occurred before the Act's passage⁴⁰ (a gap that the Supreme Court resolved in *Carr v. United States*⁴¹) and whether conviction for failure to register requires evidence that the defendant "knowingly" violated the registration provision.⁴²

Grappling with a provision in the Class Action Fairness Act of 2005,⁴³ appellate courts split as to the meaning of “not less than 7 days after the entry of the order” where a court of appeals “may accept an appeal from an order of a district court granting or denying a motion to remand a class action [that is, to send that case back to the state court] . . . if application is made to the court of appeals not less than 7 days after entry of the order.”⁴⁴ The Third Circuit read the statute as meaning “not more than,”⁴⁵ while the Seventh Circuit read the statute literally as meaning “not less than seven days.”⁴⁶ Ultimately, Congress amended the section to read “not more than 10 days” after entry of the order.⁴⁷

Under protocols worked out with legislative personnel, clerks of the courts of appeals send opinions identified by the clerk, staff attorney, or the three-judge panel to the House Speaker and Senate President Pro Tempore and to the chairs and ranking members of the two Judiciary Committees. The letter accompanying each opinion, which is in the nature of an executive communication, does not comment on the opinion; it says only: “Enclosed please find an opinion of the United States Court of Appeals for the [X] Circuit, which may be of interest to the Congress.”⁴⁸ At the same time, the clerk sends electronic copies of the letters and opinions to the respective House and Senate legislative counsels, to Governance Institute President Russell R. Wheeler, and to Carol Messito, an attorney in the Office of the General Counsel in the Administrative Office of the U.S. Courts.⁴⁹ The legislative counsels use the opinions as teaching tools about how the courts of appeals deal with drafting problems.⁵⁰ The counsels’ offices also transmit the opinions to the House and Senate committees with jurisdiction over the legislation in question for any action those committees may wish to take.⁵¹

Legislative support has been vital to this project throughout its history. Both legislative counsels participated enthusiastically in the

pilot project.⁵² Legislators themselves have been consistently positive.⁵³ More recently, in September 2010, in remarks to the Judicial Conference, Senator Jeff Sessions, then ranking member of the Senate Judiciary Committee, urged the participation of all circuits as a good government project.⁵⁴

The strongest indicator of the project's value is the legislative testimonials calling for all courts of appeals to participate. Legislators and their staffs, including the offices of legislative counsel, have much to do. That they would call for all circuits to participate suggests that the transmitted opinions benefit the drafting process.

A second measure of the project's worth derives from the ways that the legislative counsels use the transmissions. Having examined how courts apply statutory language in specific contexts, the legislative counsels can be more sensitive to drafting issues that may result in litigation. Frank L. Burk, Jr., head of the Senate Office of Legislative Counsel in the 1990s, reported that the project "helped stimulate a comprehensive two-year review of the basic rules of legislative drafting"⁵⁵ by his office. He further stated that the office "developed a drafting manual that compiles the drafting rules and conventions identified during the review," and that the office used transmitted opinions as teaching devices for "beginning staff attorneys."⁵⁶ James Fransen, Burk's successor, has been similarly supportive.⁵⁷ House Legislative Counsel M. Pope Barrow concurred, observing that "[t]he opinions of judges would be especially useful if they can identify persistent patterns in drafting errors."⁵⁸ Deputy Legislative Counsel M. Douglass Bellis, who has overseen the project in the House for many years, has said: "The greater the communication between the judicial and legislative branches of government, the more the courts and Congress will grow to understand each other and the more the public can examine what its agents are doing on its behalf."⁵⁹ Both Bellis and Fransen circulate transmitted

opinions to their respective staffs because of the opinions' instructive value.⁶⁰

At first glance, one might think that the most important metric of the project's effectiveness would be the number of statutes passed to remedy problems identified in the opinions. From the outset, however, the project's creators cautioned that its principal purpose was not to produce legislative change, but rather to inform busy legislators and their staffs of possible technical problems in statutes. And, as Bellis noted, Congress may do nothing because it may determine that the relevant court "is making good decisions in hard cases,"⁶¹ thereby creating no reason for Congress to intervene. The goal of the project "is not to find 'mistakes' that Congress made and should correct... [but] to open communication so that Congress can learn how the courts are reacting to and interpreting statutes."⁶² He observed that the feedback is invaluable: "[I]t calls our attention to drafting situations that are capable of repetition," suggesting that the referrals may "have a greater ultimate influence on the language of statutes than when (and to the extent) they lead to an amendment of the particular law."⁶³

In sum, the mechanism for transmitting opinions has the following virtues: (1) it is a neutral mechanism of communication, merely a transmission belt; (2) it does not require the creation of a body or committee; (3) Congress has encouraged it; and (4) it promotes good government. In the words of the chairs and ranking members of the House and Senate Judiciary Committees: "These modest efforts have supplied pertinent and timely information to Congress that it might not otherwise receive," including information about "possible technical problems in statutes that may be susceptible to technical amendment; and, in any case, how statutes might be drafted to reflect legislative intent most accurately."⁶⁴ Although it is inherent in the system that there will be occasional tensions

between courts and Congress,' this effort promotes interbranch comity and dialogue in a way that reduces conflict. Indeed, it may well be worth considering whether it might be useful to develop a parallel transmission process between the executive branch and Congress, whereby agency general counsels sifting through judicial opinions would identify issues of relevance to Congress, perhaps with suggestions for Congress to consider. The Administrative Conference of the United States,⁶⁵ of which I am a senior fellow, is exploring how it might play a useful role in examining the feasibility of this idea and its implementation.

B. MAKING LEGISLATIVE HISTORY MORE RELIABLE

In an era when Congress passes large omnibus bills that encompass a large number of diverse, often unrelated subjects, making legislative history more reliable is all the more important. To better signal a statute's meaning, legislative leadership could more clearly identify legislative history that courts should take into account. For instance, where feasible, the floor managers of a bill could indicate what constitutes the definitive legislative history, including floor statements and colloquies. Such signaling would simplify a court's task in reviewing the Congressional Record. Steven Charnovitz has suggested that the enrolled bill—the final copy of a bill or joint resolution which has passed both chambers in identical form, signed by the appropriate House and Senate officers and submitted to the President for signature—could also be a vehicle for conveying legislative history. In other words, accompanying the enrolled bill would be an official listing of legislative history, although, of course, the President would not be asked to sign the legislative history. Another

idea relates to the use of THOMAS, online resource of the Library of Congress, launched by the leadership of the 104th Congress, to make federal legislative information freely available to the public. Under the direction of Congress, THOMAS could add a section, "Legislative History" that would consist, for example, of specific links to committee reports, relevant colloquies and floor statements, making it easier for courts to sift through such history.⁶⁶

Moreover, as Stephen F. Ross proposed several years ago, having committee members sign committee reports, with signature sheets attached to the document, could effectively meet the charge that those reports are not endorsed by a majority of the committee. This could address the concern that committee members are not aware of the reports, or just do not read them.⁶⁷ At present, generally only those offering additional views sign the reports. Identifying authoritative legislative history, moreover, will make it easier for courts to assess amicus briefs of legislators that are filed to persuade the courts about what Congress meant in passing the statute. For legislators to try to achieve through such briefs what they could not in Congress itself is something Representative Kastenmeier deemed "a questionable procedure."⁶⁸ The more authoritative the legislative history is, the more likely it is that courts can review amicus briefs and interpret statutes in ways that do not result in what Senator Hatch called "slippage" from agreements reached in Congress.⁶⁹

Congress and courts are together engaged in an ongoing venture. The better understood the legislature makes its laws through text and accompanying materials, the more likely that the judiciary will interpret those laws in ways consonant with congressional meaning.